

Ross on Crime

C

Confession

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Confession

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[3.5300] Definition

In *Attorney-General (NSW) v Martin* (1909) 9 CLR 713 O'Connor J said (at 732):

There are many definitions of what will amount to a confession for the purposes of the rule I am considering. They all agree in this, that it must be either a direct admission of guilt, or of some fact or facts which may tend to prove the prisoner's guilt at the trial. The statement in question is certainly not a direct admission of guilt, nor does it admit any fact or facts which may tend to prove the prisoner's guilt at the trial.

Dixon J said in *McKay v The King* (1935) 54 CLR 1 at 9:

The very term confession illustrates the difficulty of laying down general propositions. For its meaning extends from the most solemn, spontaneous, express and detailed acknowledgments of the facts constituting a crime to casual admissions of some only of the specific facts involving guilt.

In *Anandagoda v The Queen* [1962] 1 WLR 817 (PC) the Board advised (at 823–824):

The test whether a statement is a confession is an objective one, whether to the mind of a reasonable person reading the statement at the time and in the circumstance in which it was made it can be said to amount to a statement that the accused committed the offence or which suggested the inference that he committed the offence. The statement must be looked at as a whole and it must be considered on its own terms without reference to extrinsic facts. In this connection their Lordships consider that the view expressed by Gratiaen J in *Seyadu v King* (1951) 53 NLR 251, 253 “The test of whether an ‘admission’ amounts to a confession within the meaning of section 17(2) must be decided ‘by reference only to its own intrinsic terms’” is correct. It is not permissible in judging whether the statement is a confession to look at other facts which may not be known at the time or which may emerge in evidence at the trial. But equally it is irrelevant to consider whether the accused intended to make a confession. If the facts in the statement added together suggest the inference that the accused

is guilty of the offence then it is nonetheless a confession even although the accused at the same time protests his innocence.

Under the *Uniform Evidence Acts* an admission encompasses a confession, and includes both inculpatory and exculpatory statements adverse to the accused's interests: *R v Horton* (1998) 45 NSWLR 426; 104 A Crim R 306 (CCA). In *R v GH* (2000) 105 FCR 419 (FCA) the court held that an exculpatory statement is not an admission.

[3.5305] “Mixed” confession

Where a confession contains admissions as well as an exculpatory explanation, that confession is admissible in its entirety.

Prosecution duty to tender

In *R v Soma* (2003) 212 CLR 299; 140 A Crim R 152; [2003] HCA 13 Gleeson CJ, Gummow, Kirby and Hayne JJ said (at 309–310; 160 [31]):

To the extent that an otherwise incriminating statement contained exculpatory material, the prosecution, if it wished to rely on it at all, was bound to take the good with the bad and put it all before the jury. And consistent with what is said in *Richardson v The Queen* [1969] 1 QB 299; [1968] 2 All ER 761; 52 Cr App R 317 and *Apostilides* (1984) 154 CLR 563; 15 A Crim R 88 the prosecutor's obligation to put the case *fairly* would, on its face, require the prosecutor to put the interview in evidence unless there were some positive reason for not doing so.

Direction to the jury

In *Mule v The Queen* (2005) 79 ALJR 1573; 221 ALR 85; 156 A Crim R 203 the court in a joint judgment approved most of the direction referred to by Thomas J in *R v Cox* [1986] 2 Qd R 55; 24 A Crim R 434 at 65, 443 (CCA). The court approved the following (at [23]):

With respect, it seems to me to be undesirable that juries be given general a priori directions as to what sorts of evidence are likely to be true, or as to the weight which should be accorded to different parts of the one statement. The matter of weight is for them, and the weight of each part of the statement should be determined in the light of the whole of the evidence. There is, of course, no reason why the trial judge should not point out that such statements have not been made on oath and (where appropriate) that they have not been tested by cross-examination. He may ... make any appropriate comments about particular parts of the evidence. The weight which may fairly be accorded to a self-serving statement varies so much from case to case that it is unwise to lay down any general disparaging

directions concerning such statements, although of course, critical comments may be made in appropriate cases.

[3.5310] Equivocal or ambiguous confessions

In *R v Dolan* [1962] Qd R 449 (CCA), when reading the statement of another, the accused said:

He has dubbed us all in.

The remark was held to be so equivocal as to not amount to a confession.

In *R v Smith* [1981] 5 Crim LJ 161 (NSW CCA) an unlicensed pistol was found at the accused's house and he was convicted of its possession. The trial issue was knowledge. The accused had told police:

This has fucked everything. I wish I could shoot myself with the fucking thing now.

The appeal was allowed, the conviction quashed with no retrial. Roden J said:

It is essential, if that evidence is to be regarded as capable of supporting a conviction, that it be unequivocal and that it be inconsistent with innocence.

[3.5315] Prosecution to tender all or nothing

In *R v Soma* (2003) 212 CLR 299; 140 A Crim R 152; [2003] HCA 13 Gleeson CJ, Gummow, Kirby and Hayne JJ said (at 309–310; 160 [31]):

To the extent that an otherwise incriminating statement contained exculpatory material, the prosecution, if it wished to rely on it at all, was bound to take the good with the bad and put it all before the jury. And consistent with what is said in *Richardson v The Queen* [1969] 1 QB 299; [1968] 2 All ER 761; 52 Cr App R 317 and *Apostilides* (1984) 154 CLR 563; 15 A Crim R 88 the prosecutor's obligation to put the case *fairly* would, on its face, require the prosecutor to put the interview in evidence unless there were some positive reason for not doing so.

R v Cassell (1998) 45 NSWLR 325 (CCA) was a case stated. Mr Cassell was charged with giving false or misleading evidence to the Independent Commission Against Corruption. Smart J said (at 338):

The correct procedure is for the accused, upon the tender by the Crown of alleged admissions, to tell the judge, if it be the case, of other parts of his evidence which should be tendered to give the whole picture so far as the admissions go. The judge then rules in accordance with the principles in *Jack v Smail*. If the judge is of the opinion that other parts of Cassell's evidence ought reasonably to be tendered by the Crown so as to give the whole picture as to the admissions and to enable the admissions to be taken as a whole and the Crown does not wish to tender these additional parts the Crown tender without those additional parts should be rejected.

[3.5320] Is the person interviewed suspected of an offence

The need for suspicion turns on the legislation in the different jurisdictions. That is dealt with below.

Cases

In *R v Heaney* [1992] 2 VR 531; (1992) 61 A Crim R 241 (CCA) the Court said in a joint judgment (at 548; 258):

The section is not concerned with a state of mind founded upon speculation or “mere idle wondering” (Kitto J in *Queensland Bacon Pty Ltd v Rees* (1966) 115 CLR 266 at 303) but is concerned with a state of mind arrived at upon consideration of known facts out of which an apprehension that a person might possibly have committed an offence is created.

In *R v Raso* (1993) 115 FLR 319; 68 A Crim R 495 (Vic CCA) Ormiston J examined legislation and authority. His Honour concluded (at 350; 527):

[T]he word “suspect” requires a degree of conviction extending beyond speculation as to whether an offence has been committed and requiring that it be based upon some factual foundation.

Both of these cases were approved in *Lai v The Queen* (2003) 13 NTLR 139; 180 FLR 190; 143 A Crim R 111 at [22] (CCA).

[3.5325] Caution

Police must caution a suspect before interview.

See **Caution** at [3.900].

[3.5330] Entitlement to a lawyer

Some legislation provides that interviewing police must advise a suspect of the entitlement to speak to a lawyer before the questioning starts.

Legislation

Cth: *Crimes Act 1914* s 23G;

Qld: *Police Powers and Responsibilities Act 2000* ss 418(1)(b) and 419(1)(b);

WA: *Criminal Investigation Act 2006* s 138(2)(c);

Tas: *Criminal Law (Detention and Interrogation) Act 1995* s 6;

NSW: *Law Enforcement (Powers and Responsibilities) Act 2002* s 22;

Vic: *Crimes Act 1958* s 464C;

SA: *Summary Offences Act 1953* s 79A(1)(b)(i).

See also

NT: *Police Administration Act* s 14A; Police General Orders Q1.28 and Q2.

Cases

In *Carr v Western Australia* (2007) 232 CLR 138; 176 A Crim R 555; 239 ALR 415 Gummow, Heydon and Crennan JJ said (at [39]):

[T]here is no principle of the common law that persons suspected by police officers of having committed a crime must be advised that they are entitled to communicate with a legal practitioner before being interrogated, or that in default evidence of any confession is automatically inadmissible. If there were such a principle, it would not have been necessary for those jurisdictions which have done so to have enacted legislation imposing a duty so to advise.

Suspect not told of entitlement to a lawyer:

R v Thomas (2006) 14 VR 475; 163 A Crim R 567 at 600–602 [104]–[115] (Vic CA): conviction set aside;

Tasmania v Challender (2007) 16 Tas R 339 (Blow J): confession ruled inadmissible.

[3.5335] Defence tender of confession

Where the prosecution does not tender a confession, it is usually impossible for the defence to do so. Nor, if the point is taken can the confession be cross examined in. The reason being that when the prosecution tenders a confession it does so under an exception to the hearsay rule. The defence cannot tender a confession because it is hearsay and self-serving.

The authorities are examined in *R v Callaghan* [1994] 2 Qd R 300; (1993) 70 A Crim R 350 (CA).

Properly stated, a confession is inadmissible at the instance of the accused unless admissible by other rules of evidence: *R v Byster* (2001) 80 SASR 373; 126 A Crim R 449 at [24] (CCA).

Typically the prosecution may refuse to tender an accused's account which contains only denials. Not only is the defence not allowed to tender the denials, it is not allowed to cross-examine on them: *Flowers v The Queen* (2005) 189 FLR 423; 153 A Crim R 110 (NT CCA).

An exception is where one confession is admissible at the instance of the defence to show or explain the reaction of the accused in another confession tendered by the prosecution: *Middleton v The Queen* (1998) 19 WAR 179; 100 A Crim R 244 (CCA).

In *R v Kochnieff* (1987) 33 A Crim R 1 (Qld CCA) Connolly J, with whom the other members of the court agreed, said (at 4):

In my view it cannot be doubted that the accused is not entitled to tender his own prior self serving statements.

In *R v Callaghan* [1994] 2 Qd R 300; (1993) 70 A Crim R 350 (CA) the remark of Connolly J in *R v Kochnieff* (1987) 33 A Crim R 1 at 4 was approved. The court went on to say (at 303, 354):

There may be exceptional cases where the interests of justice require some special qualification of a strict application of the hearsay rule (eg *R v Daylight* (1989) 41 A Crim R 354; cf *Walton v The Queen* (1989) 166 CLR 283 at 293), but it is highly desirable that the limits upon admissibility of evidence remain identifiable.

In New Zealand it has been held that a mixed confession is admissible: *R v Tozer* [2002] 1 NZLR 193 (CA).

[3.5340] Uniform Evidence Acts

Under *Uniform Evidence Acts* an exculpatory statement is not an “admission”: *R v GH* (2000) 105 FCR 419 (FCA).

In *R v Rymer* (2005) 156 A Crim R 84 (NSW CCA) Grove J, with whom the others agreed, summed up the position under the *Uniform Evidence Acts*. His Honour said (at 95–96 [64]):

In summary:

- (a) the exculpatory statements were not admissible pursuant to the exception to the hearsay rule created by s 66 and it was irrelevant to require the appellant to establish that he was going to be called to give evidence for the purposes of bringing that provision into play;
- (b) the exculpatory statements were admissible as an exception to the hearsay rule by reason of the dual purposes of the evidence seeking to demonstrate the asserted fact (that the appellant did not commit the sexual assaults alleged) and credibility deriving from his proclamation by plea that he was not guilty. By reason of the dual purposes (s 60) the evidence would not be excluded by the credibility rule (s 103);
- (c) subject to the exercise by the presiding judge of power, in particular but not limited to, that vested by s 137 to reject evidence, the evidence ought to have been tendered by the Crown. That view does not exclude the possible situation that it might be rejected pursuant to objection by an accused. For example, the content of questions asked in an interview may be considered so prejudicial that an accused would not seek to put before the jury even self serving responses to such questions.

[3.5345] Confession of another

In *Bannon v The Queen* (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370 Dawson, Toohey and Gummow JJ said (at 22; 101; 385):

What is said out of court and not in the presence of the co-accused is not evidence in the trial of the other accused.

This is undoubtedly correct as a general proposition. Out of court statements are not evidence of the truth of what is said unless the statement falls within an exception to the rule against hearsay. One such exception admits evidence of a confessional nature against the maker. Another renders admissible a statement made by a third party, since deceased, which is against his or her pecuniary or proprietary interest.

As the law stands in this country, there is no exception to the hearsay rule which renders admissible either against or in favour of an accused hearsay evidence of a confession by a co-accused or by a third party. (See, for instance, *Re Van Beelen* (1974) 9 SASR 163; *R v*

Szach (1980) 23 SASR 504; *Wade v Gilroy* (1986) 83 FLR 14; *Greatorex* (1994) 74 A Crim R 496). No Australian court, at least in any reported decision, appears to have taken the approach adopted by the Court of Appeal in England in *R v Beckford* ([1991] Criminal Law Review 833) that if the consequences of inadmissibility are that the jury does not hear an alternative version of the events giving rise to the charge, the conviction of an accused may be unsafe and unsatisfactory and accordingly set aside. It should be noted that in *Beckford* the co-accused did not give evidence and the prosecution was unable to give evidence of the confession because the trial judge held that it was not given voluntarily. (In *Rogers* [1995] 1 Cr App R 374 at 381 a differently constituted Court of Appeal refused to apply *Beckford* on the ground that the decision “turns upon its own special facts”).

In *Baker v The Queen* (2012) 245 CLR 632; 86 ALJR 906; [2012] HCA 27 the High Court revisited the issue of the admissibility of admissions made by third parties in criminal cases. As noted above, in *Bannon v The Queen* (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370 the High Court decided that such evidence was not admissible. The court unanimously reached the same result in this case. The appellant also submitted that a narrower exception should apply in relation to the admissibility of third party confessions, in that they should be admitted where they are made by co-accused. This submission was also rejected.

An aspect of this case is the brevity with which the Court dealt with arguments. The plurality (French CJ, Gummow, Hayne, Crennan, Kiefel and Bell) stated, at [56], that:

The consequence of upholding the broad contention would be to effect a significant alteration to the common law of evidence in those States which to date have chosen not to adopt the uniform Evidence Act or to modify the hearsay rule along the lines of the English legislation or otherwise. In circumstances in which the application of the hearsay rule in the appellant's trial did not occasion a miscarriage of justice (because the relevant statement by the co-accused did not provide unambiguous support for the accused's position), the invitation to effect that change should be rejected.

Thus a prosecutor cannot cross-examine an accused on any statement other than his own. Any cross-examination on another's document must not identify the document by making no reference to the source: *R v McKenzie* [2004] 1 NZLR 181 (CA).

But where police had failed to investigate matters raised in the confession of another, such failure can be used to show partiality. The confession is admissible for that purpose: *R v Greatorex* (1994) 74 A Crim R 496 (NSW CCA).

In England the excluded evidence of confession by an accused can be introduced by a co-accused: *R v Myers* [1998] AC 124; [1997] 4 All ER 314 (HL). And in a joint trial if the jury are satisfied

of the truth of A's confession, there are circumstances when they can use it against B: *R v Hayter* [2005] 1 WLR 605; [2005] 2 All ER 209 (HL).

In *Persad v State of Trinidad and Tobago* [2007] 1 WLR 2379 (PC) the Board expressed reservations about *Hayter*. On the facts, they found that a co-accused's statement to the police was wrongly admitted against the appellant and advised that the appeal (on the relevant count) be allowed.

See also

Hearsay at [8.1300].

[3.5350] Evidential effect

There is no presumption that a confession is true. In *Burns v The Queen* (1975) 132 CLR 258; 49 ALJR 248; 6 ALR 95 Barwick CJ, Gibbs and Mason JJ said (at 262; 98):

It would be a grave misdirection to tell a jury that there is a presumption that a confession made by an accused person is true. The jury, in deciding whether, in the light of all the circumstances of the case, they are satisfied of the truth of the whole or part of a confession, must approach that question without the aid of any presumption except that of innocence.

In *R v Green* (2002) 4 VR 471; 128 A Crim R 513 (CA) the accused gave evidence. He said that the account he had given police was not accurate. The court held that the judge's directions were wrong. Charles JA giving the leading judgment referred to *Burns v The Queen* and other cases. His Honour said (at 481; 524 [31]):

It is repeatedly emphasised in these authorities that the need for the jury to be directed that before they can rely on confessional statements they must be satisfied as to the truth and accuracy of those statements beyond reasonable doubt comes from the danger that the jury may not recognise that although these statements were made by the accused, it does not follow that they must be truthful; and that it is more important to give the direction where the accused does not dispute making the statements but says they were not true.

[3.5355] Gaol or cell confession

Cases

Evidence that the accused confessed to a fellow prisoner is tainted. In *Pollitt v The Queen* (1992) 174 CLR 558; 62 A Crim R 190; 108 ALR 1 McHugh J said (at 614; 45; 231):

[E]vidence from prison informers is potentially unreliable. The evidence of a prison informer may in fact be true. But, with the exception of some remand prisoners, the source is always tainted. All accounts of traditional prisons agree that beneath the veneer of law and order imposed by the rules of prison discipline lies a brutal world of fear and sudden, and often irrational, violence where conventional standards of conduct and values such as truth and respect for the rights of others have little relevance. It is not surprising, therefore, that, exposed to such an environment, some prisoners will become so indifferent to the rights and feelings of others that they will not hesitate to make false accusations of criminal conduct against other persons if acceptance of the accusations will advance their own interests. Many years of experience in hearing prisoners give evidence for and against accused persons has alerted the judiciary to the unreliability of the evidence of serving prisoners. But it is by no means certain that every juror fully appreciates that unreliability which arises not so much because the prisoner has been convicted of serious crime but because the character of that person has been altered for the worse by exposure to the values and culture of prison society.

Judges have excluded such evidence: *R v Chimirri* (2002) 136 A Crim R 381 (Vic, Osborn J); *R v KS and Said* (2003) 6 VR 264 (Coldrey J).

If the evidence is admitted the jury must be given a stern warning about its dangers: *Pollitt v The Queen* (1992) 174 CLR 558; 62 A Crim R 190; 108 ALR 1; *R v Clough* (1992) 28 NSWLR 396; 64 A Crim R 451 (CCA); *R v Bevan* [1993] 2 SCR 599; 104 DLR (4th) 180; 82 CCC (3d) 310 (SCC); *Benedetto v The Queen* [2003] 1 WLR 1545; [2003] 2 Cr App R 390 at [32]–[35] (PC); *Robinson v The Queen* (2006) 162 A Crim R 88 (NSW CCA).

Legislation

Uniform Evidence Acts s 165(1)(e) provides that the evidence of a prison informer may be unreliable. The remainder of *Uniform Evidence Acts* s 165 provides that a judge should warn the jury of the unreliability. A party should request the warning. The judge will decide whether a warning is necessary. There is no particular form of words to be used in the warning.

[3.5360] Voluntariness

For a confession to be admissible it must be voluntary. Gibbs CJ and Wilson J said in *MacPherson v The Queen* (1981) 147 CLR 512; 37 ALR 81 (at 522; 88):

The condition of the admissibility of a confession is that it was voluntarily made, and the judge must be satisfied on the balance of probabilities that this condition was fulfilled before he admits the evidence. If the accused asserts that inducements were offered or pressure exerted but denies that he made a confession, and the judge, without considering the question

of voluntariness, admits police evidence that a confession was made, the obvious possibility exists that the jury will accept the police evidence and find that the confession was made, and if that occurs they will have before them evidence that has not been found to be admissible, and an important rule which exists to protect accused persons, and to maintain proper standards of police investigation, will have been subverted.

In *McDermott v The King* (1948) 76 CLR 501 the accused was convicted in New South Wales for a murder 10 years before. A service station owner had been battered by a detachable pump handle on a petrol bowser. The assailant removed the body which was never found. McDermott made some admissions to police. Dixon J said (at 511):

At common law a confessional statement made out of court by an accused person may not be admitted in evidence against him upon his trial for the crime to which it relates unless it is shown to have been voluntarily made. This means substantially that it has been made in the exercise of his free choice. If he speaks because he is overborne, his confessional statement cannot be received in evidence and it does not matter by what means he has been overborne. If his statement is the result of duress, intimidation, persistent importunity, or sustained or undue insistence or pressure, it cannot be voluntary. But it is also a definite rule of the common law that a confessional statement cannot be voluntary if it is preceded by an inducement held out by a person in authority and the inducement has not been removed before the statement is made.

His Honour also said (at 512):

It is perhaps doubtful whether, particularly in this country, a sufficiently wide operation has been given to the basal principle that to be admissible a confession must be voluntary, a principle the application of which is flexible and is not limited by any category of inducements that may prevail over a man's will.

In *Ibrahim v The King* [1914] AC 599 (PC) Lord Sumner, giving the advice of the Board, said (at 609):

It has long been established as a positive rule of English criminal law, that no statement by an accused is admissible in evidence against him unless it is shewn by the prosecution to have been a voluntary statement, in the sense that it has not been obtained from him either by fear of prejudice or hope of advantage exercised or held out by a person in authority. The principle is as old as Lord Hale.

See also, *R v Griffiths* [2013] QCA 120; *R v Playford* [2013] QCA 109.

[3.5365] Uniform Evidence Acts: s 84 exclusion

The *Uniform Evidence Acts* s 84 provide for the exclusion of admissions that are not voluntary.

84 Exclusion of admissions influenced by violence and certain other conduct

- (1) Evidence of an admission is not admissible unless the court is satisfied that the admission, and the making of the admission, were not influenced by:
 - (a) violent, oppressive, inhuman or degrading conduct, whether towards the person who made the admission or towards another person; or
 - (b) a threat of conduct of that kind.
- (2) Subsection (1) only applies if the party against whom evidence of the admission is adduced has raised in the proceeding an issue about whether the admission or its making were so influenced.

Cases

Habib v Nationwide News Pty Ltd (2010) 76 NSWLR 299; [2010] NSWCA 34: for a discussion of the meaning of oppressive conduct;

R v GH (2000) 105 FCR 419 (FCA): an exculpatory statement is not an admission;

Em v The Queen (2007) 232 CLR 67; 239 ALJR 204; 174 A Crim R 540; 239 ALR 204 at [51] contains references to the ALRC report.

[3.5370] Overseas confession

Rules of the court hearing the case apply to overseas confessions.

In *R v Thomas* (2006) 14 VR 475; 163 A Crim R 567 (CA) the accused had been interviewed in Pakistan by the Australian Federal Police. Earlier interviews were made by security agents of other countries. Appeal allowed. The confession was tainted by lack of free choice to speak or be silent (at 498; 592 [69] and following); lack of access to a lawyer (at 507; 601 [109]).

In *R v O'Boyle* (1991) 92 Cr App R 202 the English appellant had spoken in the USA to Drug Enforcement Agency Officers. He was neither cautioned nor told of his rights and assured that he was speaking in confidence. He made in effect a confession to drug dealing. The trial judge excluded it. In fact a co-accused introduced the excluded confession. Appeal allowed.

In *R v McMillan* (1984) 13 A Crim R 234 (Vic CCA) Mr McMillan had been apprehended at Brussels airport. He had given a false name and produced false documents. He was told he could be

detained unless air tickets were not stolen. He gave an account about drug dealing. Held: the trial judge had rightly admitted the evidence of the Brussels police, for the statement was voluntary.

[3.5375] Tape recording of confession

Legislation

Uniform Evidence Acts s 86.

Cth: *Crimes Act 1914* s 23V;

Qld: *Police Powers and Responsibilities Act 2000* ss 263-266;

WA: *Criminal Investigation Act 2006* s 118;

Tas: *Criminal Law (Detention and Interrogation) Act 1995*; *Evidence Act 2001* ss 85A and 86;

NT: *Police Administration Act* s 142;

NSW: *Criminal Procedure Act 1986* s 281;

Vic: *Crimes Act 1958* s 464H (see also *Meade v The Queen* [2015] VSCA 171);

SA: *Summary Offences Act 1953* s 74D;

ACT: *Crimes Act 1900* s 187(3) provides that the *Crimes Act 1914* (Cth) applies.

Cases

In these jurisdictions a confession to a person in authority is not admissible unless on tape, audio or video as well.

In *Nicholls v The Queen* (2005) 219 CLR 196; 213 ALR 1 a co-appellant, Mr Coates, was claimed by police to have made admissions while the video was turned off. He was not asked about those admissions when the video was turned on again. The appeal against the murder conviction was allowed by McHugh, Gummow, Kirby and Callinan JJ (Gleeson CJ, Hayne and Heydon JJ dissenting).

Applied:

R v Murcott (2005) 31 WAR 198; 156 A Crim R 163 (Owen J).

However, where a suspect refuses to have the interview tape recorded yet allowed it to be written verbatim, the interview was held admissible by Nash DCJ in *R v Dos Santos* (1995) 80 A Crim R 350 (NSW). Nash DCJ was ruling on s 23V of the *Crimes Act 1914* (Cth).

In New South Wales the recording is called ERISP, the acronym from Electronic Recorded Interview with Suspected Person. The description comes from *Criminal Procedure Act 1986*(NSW) s 281.

In the Northern Territory the lawyers call the recording EROI (pronounced EE-roy). The expression comes from the acronym of Electronic Record of Interview: *Police Administration Act 1978* (NT) s 142.

Other Cases

R v Rowe (2001) 50 NSWLR 510; 118 A Crim R 421 (CCA);

Kelly v The Queen (1994) 12 WAR 405 (CCA) (WA);

R v Maratabanga (1993) 3 NTLR 77; 114 FLR 117 (NT, Mildren J);

Grimley v The Queen (1995) 121 FLR 282 (NT CCA);

R v Charlie (1995) 121 FLR 306 (NT, Mildren J);

Pollard v The Queen (1992) 176 CLR 177; 110 ALR 385; 64 A Crim R 393;

R v Hazim (1993) 69 A Crim R 371 at 378–382 (Vic CCA);

R v Heaney [1992] 2 VR 531; (1992) 61 A Crim R 241 (CCA);

Viet Hop Vu v Randoe (1996) 84 A Crim R 473 (Vic, Hedigan J).

Question of Law Reserved (No 3 of 1997) (1998) 70 SASR 555; 100 A Crim R 464 (CCA);

Taped confession to colleague acting undercover for police

R v O'Neill [1996] 2 Qd R 326; (1995) 81 A Crim R 458 (CA);

R v Truong (1996) 86 A Crim R 188 (ACT, Miles CJ);

R v Swaffield (1998) 192 CLR 159; 96 A Crim R 96; 151 ALR 98 (HC);

R v Carter (2000) 1 VR 175 (CA).

Deacon v The Queen [2019] NTCCA 21.

Taped confession to police pretending to be criminals

Tofilau v The Queen (2007) 231 CLR 396; 174 A Crim R 183; 81 ALJR 1688; 238 ALR 650;

R v Tofilau (No 2) (2006) 13 VR 28; 160 A Crim R 549 (CA).

Taped confession to a psychotherapist

R v Lowe [1997] 2 VR 465 at 483–486 (CA).

[3.5380] Secretly recorded conversations

The High Court has held that conversations secretly recorded by police were admissible.

In *Em v The Queen* (2007) 232 CLR 67; 81 ALJR 1896; 174 A Crim R 540; 239 ALR 204 the accused had refused to speak to the police if they recorded what was said. Later, the police obtained warrants to allow them to wear covert listening device transmitters and recorders. They spoke with the accused in a park where he made damaging admissions. At trial, Shaw J ruled out these admissions. The prosecution appealed under *Criminal Appeal Act 1912 (NSW) s 5F*. The NSW CCA ruled the admissions back in. On the second trial (before a different judge) the accused was convicted. Held: (Kirby J dissenting) the recordings were properly admitted and had not been unfair to the accused. *Evidence Act 1995 s 90* analysed.

In *Carr v Western Australia* (2007) 232 CLR 138; 176 A Crim R 555; 239 ALR 415 the accused was arrested over an armed robbery. Police questioned him but he made no admissions. He had legal advice. Police took him to the lockup and chatted with him. The accused did not know that cameras and microphones recorded everything. The recordings were admitted at trial. Held: appeal dismissed. Consent of the accused was not relevant.

[3.5385] Illegal interviews followed by legal interview

All such interviews should be excluded:

Pascoe v Little (1978) 24 ACTR 21 at 23 (Connor J);

Smith v The Queen (1996) 16 WAR 205; 86 A Crim R 398 (CCA).

[3.5390] Disputed confessions

In *R v Thompson* [1893] 2 QB 12; [1891–4] All ER Rep 376 (CCR) Cave J delivering the judgment of the Court for the Consideration of Crown Cases Reserved (a five member court) said (at 18; 380):

I always suspect these confessions, which are supposed to be the offspring of penitence and remorse, and which, nevertheless, are repudiated by the prisoner at the trial. It is remarkable that it is of very rare occurrence for evidence of a confession to be given when the proof of the prisoner's guilt is otherwise clear and satisfactory; but when it is not clear and satisfactory the prisoner is not infrequently alleged to have been seized with the desire, born of penitence and remorse, to supplement it with a confession and this desire itself again vanishes as soon as he appears in a court of justice.

Applied:

Cleland v The Queen (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619 at 12, 627 (CLR) (Murphy J);

R v Connors (1990) 20 NSWLR 438; 48 A Crim R 260 (NSW CCA);

R v Savvas (1991) 55 A Crim R 241 at 279 (NSW CCA) (Kirby P in dissent).

There must be some evidence that the confession if written has been adopted in some way even by initialling any errors on the record of interview:

Carr v The Queen (1988) 165 CLR 314; 35 A Crim R 387; 81 ALR 236;

Duke v The Queen (1989) 180 CLR 508.

Where the confession is disputed and uncorroborated the trial judge must warn the jury in accordance with *McKinney v The Queen* (1991) 171 CLR 468; 52 A Crim R 240; 98 ALR 577.

See also

McKinney direction at [13.300].

[3.5395] Confession obtained by violence or force

Such a confession is not voluntary.

In *Cornelius v The King* (1936) 55 CLR 235 Dixon, Evatt and McTiernan JJ said (at 246):

But a promise of advantage and a threat of harm are not the only matters which may deprive a statement of its voluntary character. For instance, a confession which is extracted by violence

or force, or some other form of actual coercion is clearly involuntary, and, therefore, cannot be received in evidence.

The violence, force, threats or inducement need not be by a person in authority. In *R v Attard and Mifsud* (1969) 91 WN (NSW) 824 Walsh JA said (at 831):

But the rule against the admission of involuntary statements is not confined to statements made as the result of threats or inducements by a person in authority. There are decisions in which the rule has been stated in a way that suggests that the rule relates only to statements so induced and that a statement induced by a threat or promise by a person in authority is the only case of non-voluntary statement. However, it is established by decisions of the High Court that this is a misconception and that statements which are regarded as non-voluntary because so induced are but typical cases of the application of a general rule that a confessional statement, which is not shown to be voluntary, is excluded from evidence, whatever may be the reason or the circumstances which caused the trial judge not to be satisfied that it was voluntary. I refer without repeating them here, to the expositions of the rule given in *Cornelius v The King* (1936) 55 CLR 235 at 245 and 246; *McDermott v The King* (1948) 76 CLR 501 at 511, 512 and 516 and *R v Lee* (1950) 82 CLR 133 at 144, 146, 149 and 150.

This was approved in *R v Geesing* (1985) 38 SASR 226; 16 A Crim R 90 (CCA) in which the appellant had been convicted of murder of a ten-year-old girl. Her body was never found. The main prosecution evidence was of fellow prisoners. They approached him menacingly. One said “You knocked that little kid, didn't you?” The appellant (wrongly) said “Yes”. He was then knocked to the ground. The appeal was allowed and the conviction quashed, with no retrial.

[3.5400] Confession while the accused is in custody

In *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619 Dawson J said (at 35; 645–646):

The fact that any confessional statement was made, if at all, whilst the accused was in custody, even unlawful custody, did not of itself require the conclusion that the trial judge should have exercised his discretion to exclude evidence of it: *Ibrahim v The King* [1914] AC 599, *R v Lee* (1950) 82 CLR 133, *Wendo v The Queen* (1963) 109 CLR 509; *Reg v Banner* [1970] VR 240; *R v Amad* [1962] VR 545. It is not, however, difficult to see that little is ordinarily required to persuade a trial judge that a confession obtained whilst an accused person is in custody, particularly unlawful custody, is not shown to be voluntary or is such that it would be unfair to the accused to admit it in evidence against him.

In *Williams v The Queen* (1986) 161 CLR 278; 28 A Crim R 1; 66 ALR 385 Gibbs CJ said (at 285; 390; 5–6):

The critical question is whether the arrested person was detained any longer than was reasonably necessary to enable him to be brought before a justice. If he is detained for the purpose of enabling him to be brought before a justice, the fact that he is questioned, whether about the offence for which he was arrested, or about other offences, will not necessarily mean that there has been a failure to bring him before a justice as quickly as was reasonably practicable. On the other hand, if he is detained, not for that purpose, but solely for the purpose of questioning him, the detention will be unlawful.

In *Michaels v The Queen* (1995) 184 CLR 117; 130 ALR 581; 80 A Crim R 542 Brennan, Deane, Toohey and McHugh JJ said (at 124; 585; 586):

On one aspect the law is quite clear. It is unlawful for a police officer to delay taking an arrested person before a justice in order to question the person or to make further inquiries relating to the offence for which the person has been arrested, or to some other offence.

[3.5405] Confession by a child

A judge or magistrate will strictly construe such Acts or Rules concerning the interview of a child. Non-compliance will generally mean exclusion:

Dixon v McCarthy [1975] 1 NSWLR 617 at 639–640 (Yeldham J);

Walker v Marklew (1976) 14 SASR 463 (FC);

Pascoe v Little (1978) 24 ACTR 21 at 23 (Connor J);

Collins v The Queen (1980) 31 ALR 257 (FCA);

Frijaf v The Queen [1982] WAR 128 at 131 (CCA) (Wickham J);

R v S & J (1983) 32 SASR 174; 8 A Crim R 88 (CCA);

T v Waye (1983) 35 SASR 247 at 254–255; 11 A Crim R 422 at 428–429 (CCA);

R v Crawford [1985] 2 Qd R 22 (CCA) (Carter J at 30);

Peters v The Queen (1987) 23 A Crim R 451 (WA CCA);

M v A [1989] Tas R 212; (1989) 44 A Crim R 373 (Tas, Neasey J);

R v H (1996) 85 A Crim R 481 (NSW, Hidden J);

R v Coe [1997] 2 Qd R 465 (CA);

DPP v Toomalatai (2006) 13 VR 319; 163 A Crim R 192 (Bell J).

[3.5410] Mental state of the person confessing

Gleeson CJ summarised the propositions in *R v Parker* (1990) 19 NSWLR 177; 47 A Crim R 281 (CCA) (at 183; 286–287):

1. The fact that an accused person who has allegedly confessed to committing a crime, was at the time of the alleged confession, suffering from some form of unsoundness of mind or psychiatric disorder may, depending upon the circumstances, be of importance in considering the evidentiary value of the confession, and may in some circumstances deprive it of all evidentiary value: *Jackson v R* (1962) 108 CLR 591. It does not, however, necessarily make evidence of the confession inadmissible: *Sinclair v R* (1946) 73 CLR 316 and *R v Starecki* [1960] VR 141.
2. Even if such evidence is admissible, a consideration of the quality of the evidence may, in a given case, result in a conclusion that a verdict founded upon it is unsafe and unsatisfactory: *Morris v R* (1987) 163 CLR 454.
3. The intellectual capacity of the accused, or the existence of some disease or disorder of the mind, may go to the issue of whether the confession was voluntarily and may, in that respect bear upon the admissibility of the evidence. It may be relevant to the question of whether the confession was made in the exercise of free choice, or of an understanding of his right to choose between speaking and remaining silent ... The circumstances in which such a fact may be relevant to an issue as to the voluntariness of a confession are multifarious: cf *R v Lee* (1950) 82 CLR 133 and *Van Der Meer v R* (1988) 62 ALJR 656; 82 ALR 10; 35 A Crim R 232.
4. Further even if the confessional evidence is admissible, the intellectual or mental state of the accused may, in a number of possible ways, go to the exercise of a trial judge's discretion to reject the evidence ... it may for example touch upon the propriety of the means by which the confessional statement was obtained, the reliability of the statement itself, and the fairness involved in permitting the statement to be used against the accused.
5. A person's vocabulary and standard of comprehension may also be relevant in determining an issue as to whether such a person in fact made the statement or intended the admissions attributed to him: *Murphy v R* (1989) 167 CLR 94.

6. If a Crown case is based upon the whole or in part upon the confession of a person suffering from some mental disability which may affect the reliability of the confession then a trial judge in his summing up should use appropriate means to bring to the attention of the jury the possible danger of basing a conviction on such evidence unless it is confirmed by other evidence: *Bromley v R* (1986) 161 CLR 315.

See also

R v Hurihanganui [2004] 2 NZLR 1 (CA).

[3.5415] Physical state

Fainting and exhaustion

In *R v Burnett* [1944] VLR 115 the accused fainted twice from exhaustion after arrest and before confession. O'Bryan J ruled out the confession as non-voluntary.

[3.5420] Drunkenness

In *Sinclair v The King* (1946) 73 CLR 316 Dixon J said (at 336):

A confession made by a defendant more or less under the influence of intoxicating liquor is not inadmissible as evidence unless the degree of intoxication is so great as to deprive him of the understanding of what he was confessing.

Wells J speaking for the court in *R v Ostojic* (1978) 18 SASR 188 (CCA) at 197 said that drunkenness had many different effects. After giving examples his Honour said (at 197):

To try to formulate a rule fit to govern all such cases would put the law in danger of being shaped by the special subject matter and remove it from the protection of principle.

In *R v Garth* (1994) 73 A Crim R 215 (SA CCA) a video interview was held properly admitted. The accused was an alcoholic and intoxicated but the video showed he appreciated his position, agreed to answer questions, understood what was asked and gave rational answers.

Other cases

Jackson v The Queen (1962) 108 CLR 591 at 598;

R v LR [2006] 1 Qd R 435; (2005) 156 A Crim R 354 (CA);

R v Smith (1992) 58 SASR 491;

In *Sindoni v The Queen* [2021] SASCA 138 an admission was admitted into evidence despite the fact that the defendant claimed he was intoxicated and expressed a desire for the interview to stop. A drunken admission was also admitted in *Holmes v The State of Western Australia* [2023] WASCA 26.

See also

Intoxication at [9.3800].

[3.5425] Hysteria

Hysteria of an accused does not of itself make the confession involuntary:

R v Lee (1950) 82 CLR 133;

R v Isequilla (1975) 1 WLR 716; [1975] 1 All ER 77; 60 Cr App R 52.

[3.5430] Confession through an interpreter

Principle

Where an interpreter is used to translate questions and answers, the interpreter must give evidence of the truth and accuracy of the translation together with the police officer who asked the questions: *Gaio v The Queen* (1960) 104 CLR 419.

Where the interpreter does not give evidence the confession is not admissible:

R v Ah Wong (1957) SR (NSW) 582; 74 WN 347 (CCA);

R v Attard (1958) 43 Cr App R 90.

It used to be said that no rule of law or practice existed to say that whenever a person with an imperfect knowledge of English was interrogated without the presence of an interpreter any resulting confession was inadmissible. Such a proposition came from *R v Czerwinski* [1954] VLR 483 (CCA).

This is no longer the case. In *R v Lars* (1994) 73 A Crim R 91 (NSW CCA) one of the accused, Ms Da Silva was Brazilian. She was interviewed with a Mr Campbell as interpreter. He had been in Brazil for three years but had left ten years before the interview. His knowledge of the Portuguese

language was good but rather basic. After careful examination the court allowed Ms Da Silva's appeal and entered a verdict of acquittal (at 115–121).

In *R v Li* [1993] 2 VR 80 Coldrey J ruled out a confession made by an accused who, because of poor education and lack of knowledge of English, felt compelled to participate in the interview process. In such circumstances the interview was not voluntary.

See also

R v Nguyen (1995) 78 A Crim R 582 (Coldrey J).

Legislation

Some legislation requires a necessary interpreter during police questioning.

Cth: *Crimes Act 1914* ss 23N and 23YDA;

Qld: *Police Powers and Responsibilities Act 2000* s 260;

Tas: *Criminal Law (Detention and Interrogation) Act 1995* s 5;

NT: *Police Administration Act* s 138(j);

Vic: *Crimes Act 1958* s 464D;

SA: *Summary Offences Act 1953* s 83A;

ACT: *Human Rights Act 2004* s 22(2)(h).

See also.

Anunga rules at [1.5000]; and **Interpreter** at [9.3600].

[3.5435] Expert evidence about a confession

This is now rarely an issue.

In days gone by, trial courts were often taken up with debate about whether an accused could have made the confession attributed to him or her by the police. A good example on refused leave to appeal is *Stuart v The Queen* (1959) 101 CLR 1.

Now that most jurisdictions require a confession to be audio-taped as a precondition of admissibility, the question of whether an accused did confess generally does not arise.

Untaped confessions are still admissible if not made by a person as a suspect to a person in authority. Hence casual conversations with police and all conversations with non-police such as friends and colleagues were held admissible in *R v Alexander* [1994] 2 VR 249 (CCA).

A more recent authority is the appeal on the Anita Cobby murder: *Murphy v The Queen* (1989) 167 CLR 94; 40 A Crim R 361; 86 ALR 35. A psychologist had been stopped at trial from giving evidence that expressions in the confession could not have been used by the accused. The psychologist's expertise was not questioned by the prosecution. He would have said that due to poor upbringing and lack of education certain expressions and concepts were foreign to the accused. It was held that the evidence had been wrongly excluded and the appeal was allowed.

The reception of certain evidence often depends on whether the accused is “normal”. The acts and words of normal people can be assessed by a jury unaided by an expert. Only the non-normal accused is potentially the subject of opinion evidence. The question of normality is generally decided by the expert. The High Court pointed out the unsatisfactory nature of the arguments in *Murphy v The Queen* (1989) 167 CLR 94; 40 A Crim R 361; 86 ALR 35 Mason CJ and Toohey J said (at 111; 47–48; 374):

In *Reg v Turner* [1975] QB 834, at 841, Lawton LJ expressed the basis upon which expert evidence is received in terms about which there can be no quarrel:

An expert's opinion is admissible to furnish the court with scientific information which is likely to be outside the experience and knowledge of a judge or jury.

Later, Lawton LJ added some remarks which may not be so unquestionable:

Jurors do not need psychiatrists to tell them how ordinary folk who are not suffering from any mental illness are likely to react to the stresses and strains of life.

There are difficulties with such a statement. To begin with, it assumes that “ordinary” or “normal” has some clearly understood meaning and, as a corollary, that the distinction between normal and abnormal is well recognized. Further, it assumes that the commonsense of jurors is an adequate guide to the conduct of people who are “normal” even though they may suffer from some relevant disability. And it assumes that the expertise of psychiatrists (or, in the present case, psychologists) extends only to those who are “abnormal”. None of these assumptions will stand close scrutiny.

Expert opinion not admitted because the accused was “normal”

R v O'Callaghan [1976] VR 441 (Gowans J).

Expert opinion should have been admitted because accused not “normal”

R v Barry [1984] 1 Qd R 74; (1983) 10 A Crim R 143 (CCA).

Speech patterns of accused and Aborigines generally was held not the subject of expert evidence in *R v Condren* (1987) 28 A Crim R 261 (Qld CCA).

[3.5440] Inducement

A confession may be involuntary if produced by inducement.

Did it taint the confession

In *R v Dixon* (1992) 28 NSWLR 215; 62 A Crim R 465 (NSW CCA) Wood J with whom the others agreed said (at 226; 480):

The authorities are relatively settled that in determining whether the inducement tainted the confession, regard is to be had not to whether a reasonable person could have been affected by the inducement, but whether the mind of *the accused* was affected by it.

Some forms of inducement

The inducement may take any form but it must come or be adopted by a person in authority.

Examples of inducements making the confession non voluntary:

“Tell the truth or I'll send for the police”: *R v Sutherland* [1959] Crim LR 440 (CCA).

“If you don't tell me you may get yourself into trouble and it will be the worse for you”: *R v Coley* (1868) 10 Cox CC 536 (Mellor J).

“It would be better for you to tell the truth”: *R v Beere* [1965] Qd R 370 (Gibbs J).

“I think it would be better if you made a statement and told me exactly what happened”: *R v Richards* [1967] 1 WLR 653; [1967] 1 All ER 829; 51 Cr App R 266 (CA).

“If I make a statement will I be given bail?” “Yes”: *R v Zaveckas* [1970] 1 WLR 516; 1 All ER 413; 54 Cr App R 202 (CA), *R v Bosman* (1989) 40 A Crim R 205 (SA CCA).

“Put your cards on the table. Tell them the lot ... if you did not hit him they cannot hang you”: *R v Cleary* (1963) 48 Cr App R 116 (CA) (By the accused's father to the accused in police presence).

“You are telling lies – and you have guilt written all over your face”: *R v K* (1984) 14 A Crim R 226 (NSW, Wood J).

“What will happen if I tell you the truth?” “Well nothing happens to people who tell the truth”: *Pascoe v Little* (1978) 24 ACTR 21 (Connor J). (Miss Pascoe was aged 14.)

Other offences will be taken into account: *R v Bosman* (1989) 40 A Crim R 205 (SA CCA).

Onus after inducement

In *R v Dixon* (1992) 28 NSWLR 215; 62 A Crim R 465 (NSW CCA) Wood J with whom the others agreed said (at 226; 480):

[I]t remains open to the Crown to carry the onus of voluntariness by positive proof that the inducement did not procure the confession, or by proof that its effect had been dissipated or removed by the time of the confession: *R v Bosman* (1988) 50 SASR 365; 40 A Crim R 205 at 368–399 (SASR), 208 and 212 (A Crim R); *R v Scofield* (1988) 37 A Crim R 197 at 200; *Sparks* (at 989); *Murphy v The Queen* (1989) 167 CLR 94; 40 A Crim R 361; 86 ALR 35; *R v Milnes* (1983) 33 SASR 211.

Jury directions

A judge may admit a confession into evidence because an inducement may not have affected voluntariness. The jury must still be given a direction. In *R v Blades; Ex parte Attorney-General* (2001) 124 A Crim R 415 (Qld CA) the court said in a joint judgment (at 416 [6]):

Circumstances such as the existence of a threat or inducement may bear upon the question whether a confessional statement is true and reliable, and therefore require consideration by the jury. Commonly in the course of a summing-up juries are advised of factors which might bear upon the reliability of the confession, and matters such as fear or hope of reward are mentioned when appropriate.

[3.5445] Police duties

Elias CJ issued *Practice Note – Police Questioning* [2007] 3 NZLR 297–298. His Honour's note turned on the application of the *Evidence Act 2006* (NZ) s 30(6) and the *remap* (NZ) s 23. But it should apply in most jurisdictions. His Honour said:

- (1) A member of the police investigating an offence may ask questions of any person from whom it is thought that useful information may be obtained, whether or not that person is a suspect, but must not suggest that it is compulsory for the person questioned to answer.
- (2) Whenever a member of the police has sufficient evidence to charge a person with an offence or whenever a member of the police seeks to question a person in custody, the person must be cautioned before being invited to make a statement or answer questions. The caution to be given is:
 - (a) that the person has the right to refrain from making any statement and to remain silent;
 - (b) that the person has the right to consult and instruct a lawyer without delay and in private before deciding whether to answer questions and that such right may be exercised without charge under the Police Detention Legal Assistance Scheme;
 - (c) that anything said by the person will be recorded and may be given in evidence.
- (3) Questions of a person in custody or in respect of whom there is sufficient evidence to lay a charge must not amount to cross-examination.
- (4) Whenever a person is questioned about statements made by others or about other evidence, the substance of the statements or the nature of the evidence must be fairly explained.
- (5) Any statement made by a person in custody or in respect of whom there is sufficient evidence to charge should preferably be recorded by video recording unless that is impractical or unless the person declines to be recorded by video. Where the statement is not recorded by video, it must be recorded permanently on audiotape or in writing. The person making the statement must be given an opportunity to review the tape or written statement or to have the written statement read over, and must be given an opportunity to correct any errors or add anything further. Where the statement is recorded in writing, the person must be asked if he or she wishes to confirm the written record as correct by signing it.

[3.5450] Police do not have to accept first answer

In *R v Clarke* (1997) 97 A Crim R 414 (NSW CCA) Hunt CJ at CL said (at 419):

[A] police officer is under a duty to ascertain the facts which bear upon the commission of a crime, whether from the suspect or not, and the officer is not bound to accept the first answer given; questioning is not to be regarded as unfair merely because it is persistent. It

is a question of degree as to whether persistence has crossed the line so as to render it unfair to use the answers in evidence.

Approved:

[R v Phan \(2001\) 53 NSWLR 480; 123 A Crim R 30 at \[54\] \(NSW CCA\).](#)

See also

[R v Smith \[1964\] VR 95 at 97 \(Gowans J\);](#)

[R v O'Neill \(1988\) 48 SASR 51 \(CCA\)](#) per King CJ at 56.

[3.5455] Wrongful acts by police

Wrongful acts by police may cause a confession to be held to be non-voluntary or excluded in the exercise of discretion.

In *Lam Chi-Ming v The Queen* [1991] 2 AC 212; [1991] 3 All ER 172; (1991) 93 Cr App R 358 (PC) the Board advised (at 220; 178; 363):

[T]he rejection of an improperly obtained confession is not dependent only upon possible unreliability but also upon the principle that a man cannot be compelled to incriminate himself and upon the importance that attaches in a civilised society to proper behaviour by the police towards those in their custody.

Approved:

[A v Home Department \(No 2\) \[2006\] 2 AC 221; \[2005\] 3 WLR 1249; \[2006\] 1 All ER 575 \(HL\)](#) per Lord Bingham at [17].

The purpose of questioning and on which offence must be made clear. In [R v Kirk \[2000\] 1 WLR 567; \[1999\] 4 All ER 698 \(CA\)](#), in giving the judgment of the court, Kennedy LJ said (at 572; 703):

[W]here the police, having made an arrest, propose to question a suspect or to question him further in relation to an offence which is more serious than the offence in respect of which the arrest was made, they must, before questioning or questioning further, either charge the suspect with the more serious offence ... or at least ensure that he is aware of the true nature of the investigation.

See also

R v Lancaster [1998] 4 VR 550; (1998) 100 A Crim R 589 (CA).

Police (Incompetence) at [16.2305].

[3.5460] Lengthy or unlawful detention in custody

Dawson J said in *Cleland v The Queen* (1982) 151 CLR 1; 57 ALJR 15; 43 ALR 619 (at 35; 645–646):

[L]ittle is ordinarily required to persuade a trial judge that a confession obtained whilst an accused person is in custody, particularly unlawful custody, is not shown to be voluntary or is such that it would be unfair to the accused to admit it in evidence against him.

See also

Williams v The Queen (1986) 161 CLR 278; 28 A Crim R 1; 66 ALR 385.

The issue of when an accused does not wish to be questioned, or further questioned was raised in *R v Ireland* (1970) 126 CLR 321. Barwick CJ said (at 333):

In *Reg v Evans* [1962] SASR 303 ... the Supreme Court of South Australia in conformity with its earlier decisions in *Lenthall v Curran* [1933] SASR 248 and *Bailey v The Queen* [1968] SASR 301 decided that it was improper for police investigating the commission of a crime to persist in questioning a suspect after an indication that he did not wish to answer any more questions. In those cases, police questioning had so persisted but no statement or admission by the suspect had resulted. None the less the Court condemned the further questioning and excluded evidence of it in the exercise of what is now a clearly established judicial discretion to exclude evidence otherwise admissible because of the unlawfulness or unfairness of the manner of its discovery or creation.

The issue of persistent or lengthy questioning was discussed in:

R v Cumes (1990) 102 FLR 113 (NT, Nader J);

R v Jones [1970] 1 NSW 190; 91 WN (NSW) 777 (Isaacs J).

Some legislation refers to detention before questioning:

Qld: *Police Powers and Responsibilities Act 2000* ss 234–244;

Tas: *Criminal Law (Detention and Interrogation) Act 1995* s 4;

NT: *Police Administration Act* s 137(2);

Vic: *Crimes Act 1958* s 464A(4).

See also

[R v Dalley \(2002\) 132 A Crim R 169 \(NSW CCA\)](#).

[3.5465] Cross-examination and scepticism

In [R v Amad \[1962\] VR 545](#) Smith J ruled (at 548):

Even if the questioner is concerned only to find out the truth and has no preconceptions and no desires as to where it will be found to lie, and even if he refrains from putting any words at all into the accused's mouth, he is nevertheless cross-examining in the sense relevant to the matters here in question when he proceeds, as in this present case, to submit the person in custody to a searching questioning in which disbelief is repeatedly expressed in his denials of complicity, his account of his movements is challenged and checked, he is confronted with evidence of its falsity, he is accused explicitly of lying, and his refusal of further information is met with a statement that there are questions which the interrogator must ask him. A person in custody is, by that fact, ordinarily under great stress, and for that reason the law for his protection holds it to be improper to subject him, even after caution, to any form of cross-examination the tendency of which is in fact to extort admissions or to overcome his mental resistance to making admissions. There is no exception from this principle in favour of an interrogator whose desire is solely to find out the truth and not to obtain evidence for use against the accused. It is what the interrogator does and not his state of mind that is decisive.

Smith J went on:

One of the dangers inseparable from such improper interrogations is that the accused, unless he is a person of wisdom and firm character, will be likely to try to escape from the pressures and anxieties of his position by resort to false denials and inventions; these in due time are proved to be untrue, and the resulting impairment of his credit is likely to cause the jury to reject truthful evidence given by him in his own defence.

In [R v Bankowski \(1971\) 18 FLR 179 \(ACT\)](#) Smithers J said (at 182):

It is quite improper to cross-examine an accused person in custody. If the statements of the accused are flung back in his teeth with expressions of disbelief that is an improper form of cross-examination: see Williams J in [Smith v The Queen \(1957\) 97 CLR 100](#) at 130. If his

statements are refuted by an intimation that some witness had stated to the contrary, this is an improper form of cross-examination. Whether or not it be regarded as cross-examination the statement to the accused that such and such witnesses say this or that against the accused in a material particular is an independent impropriety: see *Smith v The Queen* (at 129) per Williams J; see also *R v Brown* (1931) 23 Cr App R 56. If it is done to induce a confession, as it obviously was in this case, it amounts to pressure on the part of a person in authority and is calculated to deprive any supervening confession of the quality of voluntariness.

In *R v Pritchard* [1991] 1 VR 84 (CCA) Crockett, McGarvie and Beach JJ dismissed the appeal, but in a joint judgment said (at 93):

The harm to him was that by the form of his questions the police officer was able to convey to the viewer of the tape the undisguised ridicule and derision he entertained about the answers of the applicant given in an endeavour to extricate himself from what obviously were real difficulties. The police would not at the trial have been permitted to express their incredulity or total disbelief in the applicant's answers. Why should they be allowed to do so by the form of questions chosen to be put to the applicant which can be, as they were, so vividly reproduced before the jury at trial?

Cross-examination as such, though forbidden by the Chief Commissioner's Standing Orders, may often not lead to the exclusion of the answers it produces. But cross-examining questions that carry scornful overtones of disbelief are altogether another matter.

[3.5470] Not wanting to answer further questions

A suspect who is being interrogated may say that he does not want to answer, or to answer any further questions. If the interrogator persists in asking further questions, any later admissions are apt to be excluded.

In *R v Evans* [1962] SASR 303 (CCA) the court said in a joint judgment (at 306):

In view of what has happened in the present case, it is apparent that there are police officers who are under some misapprehension as to their duty, and we think that the time has come for this Court to say, quite bluntly, that it is not permissible for a police officer to persist in interrogating a person in custody beyond the point at which they intimate the desire to say nothing or no more.

In *R v Ireland* (1970) 126 CLR 321 Barwick CJ referred to the decisions in *R v Evans* and earlier cases to the same effect. He said (at 333):

In *R v Evans* the Supreme Court of South Australia in conformity with its earlier decisions decided that it was improper for police investigating the commission of a crime to persist in questioning a suspect after an indication that he did not wish to answer any more questions. In those cases, police questioning had so persisted but no statement or admission by the suspect had resulted. None the less the Court condemned the further questioning and excluded evidence of it in the exercise of what is now a clearly established judicial discretion to exclude evidence otherwise admissible because of the unlawfulness or unfairness of the manner of its discovery or creation.

In these cases a rule of practice for the conduct of police officers was laid down. I agree with them in so far as the do so.

... The breach of the rule will afford a ground for considering the exercise of a judicial discretion to exclude such evidence.

Applied:

R v Harris (1995) 64 SASR 85 at 93–96 (CCA).

See also

R v Flaherty (2002) 86 SASR 300; 133 A Crim R 42 at [33] (Besanko J).

Under the *Uniform Evidence Acts* improprieties in questioning will not necessarily cause an admission to be excluded unless the truth of the admission is adversely affected: *R v Clarke* (1997) 97 A Crim R 414 at 419 (NSW CCA).

[3.5475] Putting the statement of the victim to the accused

In *R v C* (1991) 59 A Crim R 46 (Vic CCA) the accused had been convicted of visiting various sexual indignities on his daughter. Teague J said (at 60–61):

The record of interview contained no admissions by the applicant, but did contain certain potentially prejudicial material.

A significant portion of the interview, even after the further editing, was taken up with the putting to the applicant of extracts from a lengthy statement that the prosecutrix had made to the police.

Although the matters put were consistently denied, the effect of the putting of the questions in that way was potentially doubly prejudicial.

Not only would it have served to reinforce the evidence of the prosecutrix, but it would also have necessarily resulted in some potentially prejudicial but inadmissible material being introduced through the questions.

Deane J said in *Van Der Meer v The Queen* (1988) 62 ALJR 656; 82 ALR 10; 35 A Crim R 232 (at 672; 36; 258):

The questioning by police of a suspect held in custody should not take the form of assertions that others have made allegations against him. As Isaacs J pointed out in *R v Grills* (1910) 11 CLR 400 at 422: “It is an elementary rule of law, going to the very foundation of justice, that no man shall be adjudged to be guilty of a crime upon evidence of another person's previous assertion. It matters not whether the assertion was made in the absence or the presence of the accused, as a mere assertion it cannot be regarded as any proof of the culpability of the accused or any confirmation of his accusers”.

The use of the question “Do you recall?” is discussed in *R v Wills* (1985) 39 SASR 35; 16 A Crim R 247 (CCA) in which King CJ said (at 37; 248–249):

An interrogation consisting of questions beginning, “Do you recall?” is objectionable except in the special case of a legitimate inquiry into the suspect's memory as to certain events. The form of the questions in the interview with this appellant had the practical effect of denying him the opportunity of outright denial of the allegations. This rendered the interrogation quite unfair. The unfairness was accentuated by the question, “Is there any reason why you can't recall any of these events which I put to you?” with its assumption of the truth of the allegations which had been put to the appellant.

White J said (at 42; 253):

The fair and proper form of questioning was to put the allegations of the prosecutrix to him and invite his comment thereon. In this way he would have been invited to face up squarely to each allegation and given a fair opportunity of making his answer by way of denial, affirmation or qualification. However, the persistent interrogation in the form of questions (there were twenty-three questions in all) which stated the girl's allegations as if they reflected events which actually happened and introduced or followed each allegation, so represented, by the rider “Do you recall?” had a number of prejudicial consequences. It assumed, or gave apparent validity to, the girl's allegations, it denied to the accused each time a fair opportunity to make his reply without departing from the form of the question and it tended to deflect the attention of the accused away from the substance of each allegation and towards the subject-matter of his own memory or recall. It is unfair to keep asking a suspect

or an accused person whether he can recall an event when the real question is whether or not that event actually occurred. A negative response to the question as posed does not involve as a matter of logic a denial of the substance of the allegation.

[3.5480] Confrontation between accused and witness

Police are not to arrange a confrontation between the accused and a witness. Any confession after such an event is liable to be excluded: *R v Rowe* (1954) NTJ 250 (Kriewaldt J).

In *Van Der Meer v The Queen* (1988) 62 ALJR 656; 82 ALR 10; 35 A Crim R 232 (HC) Wilson, Dawson and Toohey JJ said (at 665; 25; 246):

There followed a rather bizarre procedure in which, in the presence of Sergeant Dickson, another police officer and Storhannus, first M and then W recounted what had happened to them. Storhannus was invited to ask questions of each, though warned that he did not have to comment on anything said by them. Not surprisingly, he did comment from time to time. This was a procedure which should not have been followed, having about it the air of a trial before anyone had been charged.

See also

R v Corke (1989) 41 A Crim R 292 (Qld CCA).

Police (Incompetence) at [16.2305].

[3.5485] Misrepresentation

The facts must not be misrepresented to the accused. A confession after that misrepresentation will be rejected:

R v Anderson (1991) 1 NTLR 149; 105 FLR 25; 57 A Crim R 143 (Martin J);

Hawkins v The Queen (1994) 181 CLR 440; 124 ALR 366;

R v Mason [1988] 1 WLR 139; [1987] 3 All ER 481; (1987) 86 Cr App R 349.

The test is how the representation of the facts was understood, not intended: *R v Simmons* (1995) 79 A Crim R 31 (NSW CCA).

Such misrepresentation is contrary to the *Uniform Evidence Acts* s 138(2)(b).

[3.5490] Improper questions in interview

Improper questions in an interview make the confession liable to be excluded. Examples are:

“Do you recall...?”: *R v Wills* (1985) 39 SASR 35; 16 A Crim R 247 (CCA).

“Why would the complainant lie?” or “Why would the complainant make this allegation?”: *Graham v The Queen* (1998) 195 CLR 606; 157 ALR 404; 102 A Crim R 438 (HC). However, see *R v Arundell* [1999] 2 VR 228; (1998) 104 A Crim R 78 at 251–252 (VR), 103–104 (A Crim R) (CA); and *R v O'Neill* (2003) 7 VR 408 at 412–415 [20]–[27] (CA) where the police asked such a question, the evidence was admitted but the appeal against conviction on this ground was dismissed.

In *R v SAP; Ex parte Attorney-General (Qld)* [2006] 1 Qd R 367; (2005) 155 A Crim R 291 (CA) police had asked an accused in an incest charge whether the complainant had a motive to lie. The court held that the trial judge had wrongly excluded the evidence where the accused had made a positive reply.

[3.5495] Legal advice sought before answering

In *R v Stafford* (1976) 13 SASR 392 (CCA) Bray CJ said (at 398–399):

[T]he police should not persist in questioning a man who has signified his unwillingness to answer them and a fortiori when he has asked to see a solicitor before answering. If they do so the evidence should be rejected ... The law confers the right of silence on suspected persons except in so far as any statute takes it away. That right must be respected by the police and enforced by the courts.

In *Driscoll v The Queen* (1977) 137 CLR 517; 15 ALR 47 Gibbs J said (at 540; 66):

If the police did prevent the applicant from seeing his solicitor ... their conduct was not only reprehensible but, as I have said, was a matter to be considered by the jury in deciding whether the answers recorded in the records of interview were in fact given ... However ... a failure to allow the solicitor to be present ... would [not] in itself render evidence of the interrogation inadmissible, although it might be a ground for the judge to reject the confession in the exercise of his discretion if he regarded it as unfair to allow it to be used.

In *Tan Seng Kiah v The Queen* (2001) 10 NTLR 128; 160 FLR 26; 120 A Crim R 365 (CCA) the appellant had been convicted of drug importation. After his arrest he had sought consular and legal assistance. Neither was obtained. He was interviewed some two days later. The court held that notwithstanding that the confession was voluntary and the answers reliable, the interview should have been excluded as unfair. Both consular and legal advice had been available.

Despite requests, no solicitor was obtained in the following cases:

R v Clark (1986) 23 A Crim R 303 (SA, Johnston J);

R v Wilson (1986) 47 SASR 287; 32 A Crim R 286 (SA, White J);

R v Su (2003) 7 VR 13; 142 A Crim R 338 (Coldrey J).

In each case the confession was excluded.

In *R v Watkins* (1989) 50 SASR 467; 42 A Crim R 255 (SA) O'Loughlin J ruled out a confession made after police had unjustifiably excluded the boy's solicitor.

Most jurisdictions now have legislation requiring police to give the suspect the opportunity of legal advice.

Cth: *Crimes Act 1914* s 23G;

Qld: *Police Powers and Responsibilities Act 2000* ss 249(1) and 250;

WA: *Criminal Investigation (Identifying People) Act 2002* s 19(2);

Tas: *Criminal Law (Detention and Interrogation) Act 1995* s 6;

NT: *Police Administration Act* s 138(j);

Vic: *Crimes Act 1958* s 464C;

SA: *Summary Offences Act 1953* s 79A(1)(b)(i).

See also

Markovina v The Queen (1996) 16 WAR 354; 131 FLR 52; 93 A Crim R 149 (CCA) per Malcolm CJ (at 378; 77–78; 174–175);

R v Su (2003) 7 VR 13; 142 A Crim R 338 (Coldrey J).

[3.5500] Threat to charge another if no confession

In *R v Hurst* [1958] VR 396 (CCA) the police had said that if there were no confession, the accused's wife would be charged. It was held that the threat could have induced an untrue confession. The appeal was allowed.

In *Foster v The Queen* (1993) 67 ALJR 550; 66 A Crim R 112; 113 ALR 1 (HC) the accused was told that the accused's brother would be “picked up” if he did not confess. It was held that the confession ought to have been excluded.

[3.5505] Judge's discretion to exclude confession

See also

Discretion at [\[4.3200\]](#).

[3.5510] Voir dire to determine voluntariness

Gibbs CJ and Wilson J said in *MacPherson v The Queen* (1981) 147 CLR 512; 37 ALR 81 (at 522; 88):

[W]e are unable to see any distinction for present purposes between a case in which an accused who denies having made any confession alleges that he was subjected to inducements or pressure, and one in which the accused who also denies the making of a confession alleges that he was treated unfairly or improperly. In our opinion a voir dire should be held in both cases.

There should be only one voir dire where the voluntary aspect and the discretion are in issue. In *Foster v The Queen* (1993) 67 ALJR 550; 66 A Crim R 112; 113 ALR 1 Mason CJ, Deane, Dawson, Toohey and Gaudron JJ said (at 557; 10–11; 121):

Ordinarily, in a case where there is a dispute about the voluntariness of an alleged confessional statement and about whether evidence of it should be excluded on discretionary grounds, it will be appropriate and convenient to hold a single voir dire hearing at the end of which the questions of voluntariness and exclusion on discretionary grounds are dealt with in that order. When that approach is adopted, it will be necessary to determine the question of exclusion on discretionary grounds only if the issue of voluntariness is resolved in favour of the Crown. Circumstances may, however, arise in which the preferable course is to consider first the question whether evidence of the alleged confessional statement should be excluded on discretionary grounds. If for example, the parties are agreed that the resolution of the question of voluntariness will involve a lengthy voir dire hearing to determine disputed facts, it is open to a trial judge to deal immediately with a submission on behalf of the accused that, even on the assumption that the question of voluntariness would ultimately be resolved in favour of the Crown, the facts which are not in dispute are such that the relevant evidence should be excluded on discretionary grounds.

A voir dire should be held even when the defence does not ask for it. In *R v Deathe* [1962] VR 650 (CCA) Sholl J said (at 652):

[E]ven when an application is not made on behalf of an accused person to have the question of the voluntary character of his statement determined on the voir dire, the presiding judge is still under the duty of deciding for himself whether on the whole of the evidence he is satisfied that the statement is of a voluntary character, and if he proceeds to leave for the jury questions of voluntariness, he is doing something which he ought to have done himself.

In *MacPherson v The Queen* (1981) 147 CLR 512; 37 ALR 81 Gibbs CJ and Wilson J said (at 523; 89):

Particularly if the accused is unrepresented, once it appears that there is a real question as to the voluntariness of a confession tendered by the Crown, the judge must satisfy himself that the confession was voluntary, and if, as will usually be the case, this can only be done by holding a voir dire, he must proceed to hold a voir dire even if none is asked for: cf *Reg v Deathe* [1962] VR 650, at p 652; and *Reg v Little* (1976) 14 SASR 556, at pp 570–571. We are not to be taken as suggesting that the trial judge must hold a voir dire on every occasion when a confession is tendered, or that he is bound to accede to an application made for a voir dire when there is nothing to suggest that a real question of voluntariness, unfairness or impropriety arises, for it does not advance the cause of justice to allow a voir dire which is used merely as a fishing expedition, or a means of testing in advance the evidence of the Crown witnesses. And the trial judge has a discretion to keep the examination and cross-examination of witnesses on a voir dire within reasonable bounds. Nevertheless, the duty of the judge is to ensure that the confession is not admitted until the fact that it was voluntary has been established.

[3.5515] Function of judge and jury on voluntariness

In *R v Blades; Ex parte Attorney-General* (2001) 124 A Crim R 415 (Qld CA) the court quoted High Court and other authorities and said in a joint judgment (at 416 [5]):

[W]ell established authority including *Basto*, and *MacPherson* ... is sufficient to quote ...

Once the admissibility of a statement is challenged on the ground that it is not voluntary, it is for the judge to determine whether the prosecution has satisfied him that it was voluntarily made.

[His Honour] put before the jury the two questions which they must consider concerning the statements, namely first whether the accused said what was ascribed

to him and second, if so, whether it could be relied upon as a true recital of what had happened.

Of course once the evidence of the confession is admitted the jury are not concerned with the question whether it was voluntary; they have to consider only whether it was made and whether it was true, although they are entitled to consider the circumstances surrounding the making of the statement in deciding upon its weight and value.

On this latter point the following statement should also be noted:

Voluntariness could and should have been taken into consideration by the jury as a matter affecting the reliability of the confession.

[3.5520] Jury to determine whether confession was made and was true

Gibbs CJ and Wilson J said in *MacPherson v The Queen* (1981) 147 CLR 512; 37 ALR 81 (at 522; 88):

[O]nce the evidence of the confession is admitted the jury are not concerned with the question whether it was voluntary; they have to consider only whether it was made and whether it was true, although they are entitled to consider the circumstances surrounding the making of the statement in deciding upon its weight and value: *Basto v The Queen* (1954) 91 CLR 628; *Chan Wei Keung v The Queen* [1967] 2 AC 160; *Ragho Prasad v The Queen* [1981] 1 WLR 469; 1 All ER 319; 72 Cr App R 218.

[3.5525] Facts revealed or facts already known

In *Burns v The Queen* (1975) 132 CLR 258; 49 ALJR 248; 6 ALR 95 Barwick CJ, Gibbs and Mason JJ said (at 264; 100):

Where an accused by his confession admits facts not then known to his interrogators which are subsequently found to be true, this circumstance affords strong evidence that the confession was in fact made. Where, however, the accused by his confession admits only facts already known to his interrogators the probative value of the truth of what is admitted on the issue whether the confession was in fact made is less cogent and it should, in general, be excluded from the jury's consideration of that issue in fairness to the accused because its prejudicial effect in the minds of the jury may well outweigh any probative value it has.

[3.5530] Principles of questioning

In *R v Plevac* (1995) 84 A Crim R 570 (NSW CCA) the court said in a joint judgment (at 579–581):

Many of the arguments which arise, as to the admissibility of evidence of questions asked by police officers in the course of an interview with a suspect (who later becomes the accused) and the answers given, become confused, particularly because of a failure to distinguish between, on the one hand, the right of the police to put questions to a suspect who is willing to be questioned and on the other hand, the admissibility of evidence of what was said on such occasion; by lack of precision in the formulation of propositions relating to an accused person's so-called right of silence; and a failure clearly to distinguish between evidence which is relevant and therefore admissible, and evidence which, although admissible because of its relevance, ought be excluded in the exercise of the court's discretion. The following propositions are thought to be an accurate but not exhaustive statement of relevant principles:

1. Police may, in the course of investigation, interrogate a suspect who is willing to answer their questions, and that interrogation may include putting to the suspect the facts as the police know, or believe, or suspect them to be, in order to ascertain what, if anything, the suspect will say about them: *Grills* (1910) 11 CLR 400; *O'Neill* (1988) 48 SASR 51 at 56.
2. Such questioning must be fair and must not amount to “intimidation, persistent importunity or sustained or undue insistence or pressure”: *McDermott* (1948) 76 CLR 501 at 511; *Lee* (1950) 82 CLR 133 at 144; *Van der Meer* (1988) 35 A Crim R 232 at 258–259, but questioning is not to be regarded as unfair merely because it is persistent: *Taylor* (unreported, Court of Criminal Appeal, NSW, 18 April 1995).
3. Police should not persist with such an interrogation after the suspect has indicated that he or she does not wish to answer further questions: *Ireland* (1970) 126 CLR 321 at 331–332; although merely because a suspect says he does not wish to answer, or will not answer, any further questions does not render inadmissible answers to further questions which the suspect does answer provided the questions are fair and proper and the answers are otherwise admissible.
4. The answers given by the suspect are admissible in evidence (and hence, so are the questions) if they are relevant; but not otherwise: *Grills* at 413, 419; *Taylor* at p 9.
5. An answer (and the question to which it is given) is relevant if it is an admission, or is capable of being regarded as an admission, of guilt or of a fact relevant to the proof of guilt: *Astill* (unreported, Court of Criminal Appeal, NSW, 17 July 1992) at pp 8–13.
6. If an answer is not unequivocally an admission but is capable of being regarded as such, it is a question for the jury whether it is such. Subject to the exercise of the judge's discretion, the question and answer are admissible but it is necessary that the jury be clearly and fully directed that it is a question for them as to whether the answer does or does not amount to a relevant admission: *Astill* at pp 11–15.

7. An answer which is not capable of being regarded as an admission is on the face of it irrelevant and therefore inadmissible: *Grills* at 413; *Taylor* at p 9.
8. However, answers of that sort may yet be admissible if they form part of an interrogation in the course of which some answers do amount to admissions or are capable of being so regarded, where the question and answers which do not themselves contain admissions are relevant to set the other questions and answers in context, and/or to show that there was no impropriety on the part of the police in the conduct of their interrogation: *Taylor* at pp 9–10; *Barca* (1975) 133 CLR 82 at 107; *Grills* at 418–419; *Towers* (unreported, Court of Criminal Appeal, NSW, 7 June 1993) at pp 10–11.
9. In such circumstances, the trial judge must always carefully consider whether questions and answers which are not capable of amounting to relevant admissions should be excluded because they are prejudicial: *Grills* at 419–420; *Ireland* at 332; *Taylor*; *Astill*.
10. Where the questions and answers under consideration, although having in themselves no probative value but forming part of an interview and prima facie admissible as part of the context of that interview, do no more than already been established by other evidence or which clearly will be established by other evidence intended to be led by the Crown, their prejudicial effect will be minimal and would not ordinarily justify their exclusion: *Taylor* at 10.
11. Where, however, a question is asked, which contains a hearsay assertion of matter which the Crown is not in a position to prove, or which is inadmissible in evidence, and where the answer is not capable of amounting to an admission of the matter asserted by the questioner, there may be, depending on the nature of the matter stated and its relevance to the issues in the trial, very great prejudice, which may lead to the exclusion of the evidence, even if that means (because, in the context, the inadmissible material is inextricably interwoven with the admissible) that the Crown is deprived of some probative and admissible evidence: *Ireland* at 332; *Grills* at 419; but cf *Harriman* at pp 603–604; 231.

[3.5535] Editing the record of interview

A record of interview will be edited to exclude irrelevant or prejudicial matters or matters excluded in the judge's discretion. An example is where an interview is about a number of different offences and not all are charged, or there is severance.

In *Kilby v The Queen* (1973) 129 CLR 460; 1 ALR 283 Barwick CJ said (at 473; 292):

Of course, if the document contains inadmissible or irrelevant matter, that matter should not be admitted, but should be excised from the document and not placed before the jury...

No doubt counsel for an accused and the trial judge will both scan such a record of interview with scrupulous care to ensure that only so much of it is admitted as is relevant and admissible to the extent I have indicated.

In *R v Plevac* (1995) 84 A Crim R 570 (NSW CCA) the court said in a joint judgment (at 578):

Where evidence is to be given of admissions allegedly made by an accused person, whether such evidence is to be given orally, or by the production of a signed record of interview or a video/audio recording of an interview, it is a common and well accepted practice that the evidence may be edited, to exclude therefrom inadmissible material, or material which in the view of the trial judge ought, as a matter of discretion be excluded. The practice is, as we have said, well accepted and common, but it is something which should be done with considerable care.

The judgment went on:

The exercise of the discretion to exclude prejudicial material should not be allowed to result in a situation where the Crown is deprived of the right to rely on material which is not inadmissible or prejudicial, nor to result in a situation where what remains is, by reason of the excision of contextual material, ambiguous.

Other Cases

R v Weaver and Weaver [1968] 1 QB 353; [1967] 1 All ER 277; (1966) 51 Cr App R 77 (CA).

R v Knight and Thompson (1946) 31 Cr App R 52 (CA).

[3.5540] Function of counsel and trial judge in editing

In *R v Plevac* (1995) 84 A Crim R 570 (NSW CCA) the court said in a joint judgment (at 578–579):

It is, of course, the responsibility of counsel for the Crown and the accused to agree upon a method of editing which, while preserving the accused's right to the exclusion of prejudicial or inadmissible material, does not unfairly deprive the Crown of evidence to which it is entitled. Although the trial judge has an overall responsibility to see that the trial is conducted fairly to both parties, he or she cannot be expected to advert to matters of this kind, unless they are brought to his or her attention by counsel, in which event, of course, the judge may have to rule on the manner in which the evidence should be edited. It may happen in a particular case, that the proper exercise of the judge's discretion will lead to the admission of

evidence which is admissible but prejudicial notwithstanding its prejudicial tendency, for the very reason that it cannot be excised without depriving the Crown of powerfully probative evidence, the meaning of which would be lost by excision of related material. In such a case, of course, the judge would need to be extremely careful in directing the jury as to the proper use of such evidence: see *Harriman* (1989) 167 CLR 590; 43 A Crim R 221; 88 ALR 161, per Dawson J at 603–604; 231.

[3.5545] No cross-examination on excluded confession

In *R v Ram* [2007] 3 NZLR 322 (CA) the prosecutor had cross-examined the accused on a confession which had been excluded. Appeal allowed.

In *R v Alexander and McKenzie* (2002) 6 VR 53 (CA) the prosecutor had cross-examined the accused Alexander on a confession in an earlier and irrelevant trial. The court held that this was improper (at 75–76 [45]–[46]). Appeal allowed.

[3.5550] Joint trial: confession of co-accused is hearsay

An out of court statement by one accused is evidence for or against that accused. It is not evidence for or against another accused because it is hearsay.

Bannon v The Queen (1995) 185 CLR 1; 132 ALR 87; 83 A Crim R 370;

R v Lowrie [2000] 2 Qd R 529; (1999) 106 A Crim R 565 (CA);

M Hirst, “Confessions as Proof of Innocence” [1998] Cambridge LJ 146–165.

See also

JM Laing, “The Mentally Disordered Suspect at the Police Station” [1995] Crim LR 371–381;

DS Mortimer, “Tape-recording of Confessions in Victoria: the Troubled Interpretation of s 464H” (1995) 69 ALJ 540;

J Goldring, “Can Exculpatory Statements Be Admissions” (2004) 25 Aust Bar Rev 14–28.

See also

Aboriginals (Meaning of Aboriginal person) at [1.505]; **Anunga rules** at [1.5000]; **Bunning v Cross** at [2.4300]; **Caution** at [3.900]; and **Hearsay** at [8.1300].

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